

Court No. - 3

Case :- WRIT - C No. - 23194 of 2016

Petitioner :- Shesh Mani

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Hriday Narayan Pandey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Prashant Kumar,J.

Heard learned counsel for the petitioner.

Grievance of the petitioner is that in pursuance to an order dated 30.11.2015 passed by Division Bench of this Court on Writ Petition No. 64846 of 2015 filed by him, he approached the relevant authority invoking clause 6.5 of U.P. Electricity Supply Code, 2005 by making an application on 28.12.2015.

Grievance of the petitioner is that till date, no decision has been taken on the said application.

Learned counsel for the petitioner further points out that since no time limit was fixed by this Court while passing the order dated 30.11.2015, as such, the respondent authorities are sitting tight over the matter.

Ms. Maimuna Fatima holding brief of Shri Mahboob Ahmad, who has accepted notices on behalf of respondent nos. 2 and 3, on the basis of the instructions, states that alleged application made by the petitioner is not available in the office of respondent no. 3.

In such circumstances, we dispose of the writ petition by giving one more liberty to the petitioner to make an application under clause 6.5 of the Code along with certified copy of this order within a period of two weeks from today with the direction to the said authority that, in case, any such application is made, he shall consider and decide the same within a further period of four weeks from the date of making of the application.

Order Date :- 19.5.2016

VKS